

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Squad #7	CCRB Case #: 201801483	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/11/2018 6:45 PM	Location of Incident: § 87(2)(b)	Precinct: 30	18 Mo. SOL 7/11/2019	EO SOL 7/11/2019	
Date/Time CV Reported Thu, 02/22/2018 5:23 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 02/22/2018 5:23 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DI Theodore Federoff	00000	919026	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A. DI Theodore Federoff	Abuse: Deputy Inspector Theodore Federoff threatened to damage § 87(2)(b)'s property.	§ 87(2)(b)
B. DI Theodore Federoff	Abuse: Deputy Inspector Theodore Federoff entered § 87(2)(b) in Manhattan.	§ 87(2)(b)
C. DI Theodore Federoff	Abuse: Deputy Inspector Theodore Federoff forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)

Case Summary

On February 22, 2018, § 87(2)(b) filed the following complaint with the CCRB. On January 11, 2018, at approximately 6:45 p.m., § 87(2)(b) was home at § 87(2)(b) § 87(2)(b) § 87(2)(b) in Manhattan. Police began to knock on the door, but § 87(2)(b) did not answer. After almost an hour, Deputy Inspector Theodore Federoff allegedly told § 87(2)(b) that he had until the count of three to open the door or the police would break the door down (**Allegation A: Abuse of Authority - § 87(2)(g)**). § 87(2)(b) opened the door and officers under DI Federoff's supervision entered the apartment and handcuffed § 87(2)(b) (**Allegations B: Abuse of Authority - § 87(2)(g)**). § 87(2)(b) was transported to the hospital for medical evaluation (**Allegation C: Abuse of Authority - § 87(2)(g)**). § 87(2)(b) walked out of the hospital without treatment and had no injuries.

There was no video of this incident.

§ 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Deputy Inspector Theodore Federoff threatened to damage § 87(2)(b)'s property.

Allegation (B) Abuse of Authority: Deputy Inspector Theodore Federoff entered § 87(2)(b)

§ 87(2)(b)

Allegation (C) Abuse of Authority: Deputy Inspector Theodore Federoff forcibly removed § 87(2)(b) to the hospital

§ 87(2)(b)'s residence at § 87(2)(b) § 87(2)(c) § 87(2)(b) in Manhattan is managed by § 87(2)(b) § 87(2)(b). § 87(2)(b) believes that § 87(2)(b) § 87(2)(b) is engaged in a conspiracy with a group of drug dealers in his building. He has filed complaints with numerous local and federal law enforcement agencies.

§ 87(2)(b) stated in his CCRB statement (**Board Review 1**) that on January 11, 2018, § 87(2)(b) was alone in his apartment when he heard voices from the apartment above him speaking about drug dealing. § 87(2)(b) called the front desk attendant and informed him of what he heard. § 87(2)(b) did not recall the name of the attendant. The attendant stated that he would investigate § 87(2)(b)'s complaint.



911 Call.wav

In the recording of the 911 call, the front desk attendant stated that § 87(2)(b)'s has a psychiatric history and threatened to kill another resident and claimed to have a gun. The attendant did not provide his name to 911 (**Board Review 2**).

A short time later, someone pressed the buzzer outside § 87(2)(b)'s door and stated, "This is the police. Open the door." § 87(2)(b) did not respond in any way and went into his bedroom. There was no sound of any kind emanating from § 87(2)(b)'s apartment, but he believed it is possible that he could be heard walking to his bedroom. § 87(2)(b) did not want to open the door because he did not believe they were police officers at his door. § 87(2)(b) looked up the phone number for the 30th Precinct stationhouse and called to verify that police officers were indeed at his door. § 87(2)(b) spoke to someone whose name he did not recall who stated that they would check to verify and call § 87(2)(b) back. § 87(2)(b) stated that he also called 911 to verify, but also got no answer.



§ 87(2)(b) call to 911.wav

The recording of § 87(2)(b)'s 911 call contradicts this assertion. In the 911 call, § 87(2)(b) claimed that he was not home, but that his girlfriend was home alone and called him stating that suspicious men claiming to be police officers were at the door. § 87(2)(b) stated that he was concerned for the safety of his girlfriend (**Board Review 3**).

§ 87(2)(b) received several calls back on his phone from the police, but he decided not to answer the phone. The police continued to knock on the door for approximately 45 minutes. § 87(2)(b) eventually responded and asked what was happening. A voice responded that they were the police and told § 87(2)(b) to open the door. § 87(2)(b) requested to speak to "Captain Federoff" whom he had met previously at a community board meeting. Deputy Inspector Federoff answered and told § 87(2)(b) to open the door. DI Federoff told § 87(2)(b) that he would count to three or they would break down the door. DI Federoff began to count, and § 87(2)(b) asked DI Federoff to promise not to hurt him, and opened the door. § 87(2)(b) was told not to move and to show his hands. Several ESU officers entered the apartment and handcuffed § 87(2)(b). DI Federoff told § 87(2)(c), § 87(2)(b) "We're going to get you some help." § 87(2)(b) was transported to § 87(2)(b) by ambulance. § 87(2)(b) stated that he was asked how he felt and when he responded that he was fine, he was released from the hospital within 15 minutes of arrival.

According to the medical records from § 87(2)(b), § 87(2)(b) stated that he was engaged in a dispute with a neighbor and did not understand why police were involved. He denied any psychiatric history and walked out of the hospital before he was evaluated (**Privileged Documents**).

DI Federoff stated in his CCRB statement (**Board Review 4**) that he was notified by the patrol sergeant, Sgt. Martinez, that there was a barricaded Emotionally Disturbed Person at § 87(2)(b)'s address. As per procedure, Sgt. Martinez was required to notify the commanding officer or a Duty Captain. DI Federoff drove to the location to find that Sgt. Martinez and several unidentified patrol officers were at the location. Sgt. Martinez had also requested ESU as per procedure, but they had not yet arrived. DI Federoff was informed by Sgt. Martinez of the circumstances and was told that there was an EDP inside § 87(2)(b)'s apartment who had threatened another resident of the building and was refusing to answer the door. DI Federoff directed officers to speak to building management and gather more information. DI Federoff was

later informed that building management informed officers that the resident in § 87(2)(b)'s apartment was unstable and frequently involved in incidents. DI Federoff did not recall whether there was any reports of a weapon. Once ESU arrived at the location, they were tasked with speaking to § 87(2)(b) through the door while DI Federoff stood in the hallway and observed. § 87(2)(b) did not respond to ESU's requests, and stated that he was on the phone § 87(2)(g) and with his girlfriend. He then requested to speak to DI Federoff. DI Federoff agreed to speak with § 87(2)(b). § 87(2)(b) appealed to DI Federoff as a fellow Jew not to hurt him. DI Federoff convinced § 87(2)(b) to open the door. DI Federoff stated that he threatened to break down the door because the officers would be entitled to do so. DI Federoff recognized § 87(2)(b) when he opened the door. DI Federoff recalled meeting § 87(2)(b) at community board meetings in which § 87(2)(b)'s behavior was erratic. § 87(2)(b)'s apartment was full of stacks of paper and candles, which added further to DI Federoff's belief that § 87(2)(b) was an EDP. Nothing in § 87(2)(b)'s behavior or appearance changed DI Federoff's assessment that he was an EDP. DI Federoff personally directed officers to remove § 87(2)(b) to the hospital. DI Federoff had no knowledge of what happened after § 87(2)(b) was transported to the hospital.

According to Patrol Guide Procedure 221-13, an Emotionally Disturbed Person is defined as, "A person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others." (**Board Review 5**)

The emergency exception to the warrant requirement recognizes the "general obligation" of police to assist individuals they reasonably believe to be in distress. *People v. Mitchell*, 39 N.Y.2d 173, (1976). (**Board Review 7**) As an example, a judge in Bronx Supreme Court ruled in *People v. James* 2001 N.Y. Misc. LEXIS 392 (2001) (**Board Review 6**) that upon receiving a radio report requesting aid for an emotionally disturbed person, the police may enter into a private dwelling without a warrant where they have reasonable grounds to believe an emergency is at hand under the emergency doctrine.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one other CCRB complaint and has been named a victim in five allegations (**Board Review 8**):
 - § 87(2)(b) ,
- Deputy Inspector Federoff has been a member of service for 21 years and has been a subject in three CCRB complaints and ten allegations, of which two were substantiated:
 - 200103340 involved substantiated allegations of refusal to provide name and shield and discourteous demeanor against then PO Federoff. The Board recommended Command Discipline, and the NYPD imposed the penalty.
 - § 87(2)(g) .

Mediation, Civil and Criminal Histories

- On April 11, 2018, this case was sent to mediation and on June 12, 2018, the case was returned to investigation as § 87(2)(b) no longer wished to mediate this complaint.
- As of August 27, 2018, the Office of the New York City Comptroller has no record of a Notice of Claim being filed in regards to this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] .

Squad No.: 7

Investigator: _____
Signature Inv. Simon Wang Date
Print Title & Name

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date